

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSE LEOPOLDO PEREZ ALVAREZ,

Petitioner

VS.

ANDREA ZUNIGA,

Respondent

) Case Number: FMS-16-386914

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jose Leopoldo Perez Alvarez (Father) and Respondent Andrea Zuniga (Mother).
- 2) On 10/14/25, Father filed a Request for Order seeking modification of the existing parenting plan related to minor child, Avaya Zuniga (DOB: 07/31/13). Father seeks to modify the Court's order filed 05/09/25, which provided that "Father may have visits up to twice per week but only one school night per week. If the visit occurs on a weekday, Father shall return Avaya before 7:00 p.m. If the visit occurs on a weekend, Father shall return Avaya before 5:00 p.m. Father shall have no overnights. Father shall be present for the entirety of the visit." Father specifically requests:
 - a. A step-up plan;
 - b. A holiday schedule; and
 - c. Passport and name change orders.

- 3) On 11/04/25, Mother filed a Responsive Declaration wherein she disputes the factual allegations contained in Father's Request for Order. Mother asks the Court to deny the relief requested by Father.
- 4) On 11/06/25, Father filed a Reply to Mother's Responsive Declaration, which has been read and considered by the Court.
- 5) On 11/12/25, Mother filed a Supplemental Declaration in opposition to Father's Request for Order.
- 6) At the prior January 6, 2026 hearing, the Court issued comprehensive orders and continued the matter to June 9, 2026 to review Father's parenting time and the progress of family therapy.
- 7) On May 26, 2026, Father filed "Petitioner's Supplemental Declaration in Support of Petitioner's Request for Order to Modify the Child Custody and Visitation Order filed October 14, 2025," which has been read and considered by the Court.
- 8) On June 2, 2026, Mother filed "Respondent's Supplemental Declaration in Opposition to Petitioner's Request for Order," which has been read and considered by the Court.

B. Findings and Order

- 1) The Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Considering the Update Declarations received, the Court declines to make any further modifications to the parenting time plan. No further reviews shall occur on Father's pending Request for Order.
- 3) Any and all prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 4) Counsel for Father shall prepare the Findings and Order After Hearing.
- 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).